

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Peter Hoy (S7)	Team: Team # 3	CCRB Case #: 201405184	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Friday, 05/23/2014 10:50 PM, Sunday, 05/25/2014	Location of Incident: In front of § 87(2)(b)	Precinct: 32	18 Mo. SOL 11/23/2015	EO SOL 11/23/2015	
Date/Time CV Reported Wed, 05/28/2014 12:23 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 05/28/2014 12:23 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Boyce	09681	953698	032 PCT
2. POM Michael Carney	04940	953729	032 PCT
3. POM William Butler	00691	933664	032 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Michael Boyce	Abuse: PO Michael Boyce stopped § 87(2)(b)	§ 87(2)(b)
B.POM William Butler	Force: PO William Butler used physical force against § 87(2)(b)	§ 87(2)(b)
C.POM Michael Carney	Force: PO Michael Carney used physical force against § 87(2)(b)	§ 87(2)(b)
D.POM William Butler	Abuse: PO William Butler frisked § 87(2)(b)	§ 87(2)(b)
E.POM William Butler	Abuse: PO William Butler searched § 87(2)(b)	§ 87(2)(b)

Case Summary

On May 23, 2014, at around 10:50 p.m., § 87(2)(b) was outside the entrance of his apartment building, located at § 87(2)(b) in Manhattan, when he encountered PO William Butler, PO Michael Boyce and PO Michael Carney of the 32nd Precinct. PO Boyce stopped him and accused him of littering (**Allegation A**). During the interaction, PO Butler and PO Carney allegedly used physical force against him (**Allegations B and C**) and PO Butler allegedly frisked and searched him (**Allegations D and E**). § 87(2)(b) was then released with a summons for § 87(2)(a) 160.50.

This case was initially assigned to Investigator YanJiao Chen. On February 4, 2015, following Investigator Chen's resignation from the agency, the case was reassigned to Assistant Supervising Investigator Peter Hoy.

Mediation, Civil and Criminal Histories

This case was deemed unsuitable for mediation because § 87(2)(b)'s complaint of physical force included an allegation of injury and was part of the main focus of his complaint.

§ 87(2)(b) [§§ 86(1)(3)&(4)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

As of September 16, 2014, more than one month past the filing deadline, § 87(2)(b) had not filed a notice of claim with the City of New York regarding this incident (encl. H6).

Civilian and Officer CCRB Histories

§ 87(2)(b) has filed two previous CCRB complaints. § 87(2)(b)

PO Boyce has been a member of the service for two years and PO Carney is retired. Neither has had any other CCRB allegations made against them. PO Butler has been a member of the service for eleven years and has had 20 CCRB allegations made against him in six different cases. In case 200717516, allegations that he frisked and searched an individual were substantiated. The Board recommended command discipline, but the NYPD took no disciplinary action. In case 201300106, an allegation that he searched a vehicle was substantiated. The Board recommended command discipline, but the NYPD took no disciplinary action. (encl. B-B3)

Potential Issues

- Both PO Butler and § 87(2)(b) confirmed that they have interacted previously. § 87(2)(b)
- The NYPD's Monitoring and Analysis Section confirmed that PO Carney resigned from the NYPD on July 13, 2014 (encl. H11). As such, he was not interviewed.
- According to § 87(2)(b) and PO Butler, a witness took a video recording of the incident; however, neither could identify the witness. As such, the recording was not obtained.

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) was interviewed at the CCRB on June 3, 2014 (encl. C-C6). § 87(2)(g)
- At the time and place of occurrence, § 87(2)(b) was carrying a plastic bag of an unspecified color, containing fruit he had just purchased, and was about to enter his apartment building when he changed direction to head back to the store to buy beer.
- Four feet away was a group of officers, identified by the investigation as PO Carney, PO Boyce and PO Butler. The officers had just exited his apartment building. One of the officers called § 87(2)(b) over, asked if he lived there and requested his ID. § 87(2)(b) asked what the problem was, explained that he lived there and provided his license. PO Boyce took the license and went to a police vehicle parked nearby.
- PO Butler and PO Carney stayed with § 87(2)(b). § 87(2)(b) did not recognize PO Butler initially, but before the end of the incident, he recognized PO Butler from a previous incident. § 87(2)(b) explained that two years earlier, PO Butler was involved in arresting him. That arrest resulted in § 87(2)(b)'s hospitalization and prompted § 87(2)(b) to file a lawsuit against PO Butler.
- PO Butler ordered § 87(2)(b) to put down his plastic bag and the cell phone he was holding in his hand. § 87(2)(b) asked why, explained that the bag only contained fruit and pulled an apple from the bag. PO Butler again ordered § 87(2)(b) to drop the bag, but § 87(2)(b) refused.
- PO Butler and PO Carney grabbed § 87(2)(b) and turned him around, causing him to drop his bag but still hold onto his cell phone. The officers both grabbed and twisted his arms, then pushed him in the back so that his face pressed against the pole of some scaffolding, causing a bruise to § 87(2)(b)'s left eye. Next to the pole and scaffolding were bushes with branches sticking out, a brick wall and an iron gate with spikes on it. § 87(2)(b) was unclear regarding the extent to which he came into contact with these things, first saying that this was when he cut and scratched his face, but then only specifying that the officers pushed him against the pole. § 87(2)(b) did not specify what, if any, physical actions he took in response to the officers pushing him.
- An officer, determined by the investigation to be PO Butler, frisked § 87(2)(b)'s pants pockets. § 87(2)(b) specified that his back pants pockets were frisked and that PO Butler then reached into his back right pants pocket and removed a razor. PO Butler opened the razor, saw that the blade only extended a few centimeters and then returned the razor to § 87(2)(b)'s pocket.
- PO Boyce then returned from the police vehicle and issued § 87(2)(b) a summons for § 87(2)(a) 160.50. § 87(2)(b) denied that he had littered and denied that the officers had accused him of littering when they first stopped him.
- There were three civilian witnesses present during the incident, but § 87(2)(b) could not identify or describe them. An unidentified man later told § 87(2)(b) that one of the witnesses had a video recording of the incident.
- § 87(2)(b) did not seek medical treatment, but on an unknown date following the incident, he took photographs of his injuries (encl. C-4), which he provided to the CCRB. One of the photos depicts discoloration to § 87(2)(b)'s right cheekbone area and the other depicts two scabs on his left arm.

NYPD Statements

Subject Officer: PO WILLIAM BUTLER

- PO Butler's memo book entries (encl. E-E3) were consistent with the statement he provided to the CCRB on August 13, 2014 (encl. E4-E6).
- At the time and place of occurrence, PO Butler and his partners had just completed an unrelated

trespassing investigation and were standing outside the apartment building at § 87(2)(b) when he observed § 87(2)(b) throw a paper bag filled with unknown contents onto the ground in front of him.

- PO Boyce told § 87(2)(b) that it was not okay to litter and § 87(2)(b) argued that it was okay because he lived in the building. PO Butler requested § 87(2)(b)'s ID, which § 87(2)(b) provided.
- From the license, PO Butler recognized § 87(2)(b)'s name. PO Butler arrested § 87(2)(b) in 2011, § 87(2)(b).
§ 87(2)(b).
§ 87(2)(b). Prior to June 11, 2014, PO Butler had not seen § 87(2)(b) since the 2011 incident. PO Butler did not say anything to § 87(2)(b) about recognizing him.
- PO Boyce took § 87(2)(b)'s license to the police vehicle, at which point, § 87(2)(b) started walking away briskly. After § 87(2)(b) took about five to eight paces, PO Butler grabbed his arm, led him back to his original position and told him he was not free to leave because he was being issued a summons for § 87(2)(a) 160.50.
- § 87(2)(b) did not resist. PO Butler never pushed § 87(2)(b) against a wall or scaffolding, and did not use any physical force against him beyond grabbing his arm. PO Butler denied that § 87(2)(b) was injured during the incident and said he did not complain of injury.
- One of § 87(2)(b)'s friends was recording the incident and § 87(2)(b) appeared to be “making a show” by asking the officers, “Why are you grabbing my arm?”
- While waiting for PO Boyce to return with the summons, PO Butler frisked § 87(2)(b)'s pants pockets and waist. He did not search him. He did not feel a razor or anything else during the frisk.
- PO Butler frisked § 87(2)(b) because he feared that he had a weapon. § 87(2)(b) had been swinging and waving his keys around in his left hand and had refused to put them in his pocket when asked. PO Butler feared the keys could be used as a weapon and told § 87(2)(b) to put them in his pocket, but first he frisked § 87(2)(b) pockets to make sure he had no weapons.
- PO Butler also suspected that § 87(2)(b) may have had a weapon based on “his violent tendencies in the past.” PO Butler explained that by this, he was referring to § 87(2)(b)'s 2011 arrest.
- PO Butler did not mention seeing any bulges on § 87(2)(b).
- After PO Boyce completed the warrant check, which had negative results, he issued a summons to § 87(2)(b) for § 87(2)(a) 160.50.

Subject Officer: PO MICHAEL BOYCE

- PO Boyce's memo book entries (encl. D-D2) and the summons he issued to § 87(2)(b) (encl. D3) were consistent with the statement he provided to the CCRB on July 7, 2014 (encl. D4-D5). § 87(2)(g)
- At the time and place of occurrence, the officers were about five feet from § 87(2)(b) when PO Boyce observed him throw a black plastic bag onto the ground.
- PO Boyce approached § 87(2)(b) and asked for ID. He did not discuss what he had observed or the reason for his approach with PO Carney or PO Butler, but both officers followed him.
- PO Boyce asked for ID twice before § 87(2)(b) provided it. PO Boyce explained to § 87(2)(b) that he had seen him throw what appeared to be a bag of garbage, then took the ID to the police vehicle to run a license check and write a summons. While inside the vehicle, PO Boyce did not see the interaction between § 87(2)(b) and the other officers, but he did overhear § 87(2)(b) express frustration towards the officers and complain that they were harassing him.
- After about five minutes, PO Boyce returned with § 87(2)(b)'s ID and a summons for § 87(2)(a) 160.50. PO Boyce never saw PO Butler or PO Carney making physical contact with § 87(2)(b). There was

scaffolding around the building, but PO Boyce did not see either officer push § 87(2)(b)'s head against it. PO Boyce did not see PO Butler frisk or search § 87(2)(b).

Findings and Recommendations

Explanation of Subject Officer Identification

PO Butler and PO Boyce confirmed the roles that they and PO Carney had in the incident.

All three officers were present for the stop, and PO Boyce and PO Butler both said they saw § 87(2)(b) litter. § 87(2)(g)

§ 87(2)(b) could not identify the officer who frisked and searched him, but PO Butler admitted to performing the frisk. § 87(2)(b) said the officer who frisked him was the same officer who then searched him, § 87(2)(g)

Allegation A: Abuse of Authority – PO Michael Boyce stopped § 87(2)(b)

It is undisputed that § 87(2)(b) was stopped, and subsequently issued a summons for § 87(2)(a) 160.50. PO Boyce explained that he stopped § 87(2)(b) after observing him throw a plastic bag onto the ground. PO Butler corroborated this, but recalled the bag being paper. Both officers noted that § 87(2)(b) did this right in front of them. § 87(2)(b) denied littering and said that although he did put a plastic bag on the ground, he placed it there only after the officers told him to.

§ 87(2)(a) 160.50

§§ 86(1)(3)&(4)

§ 87(2)(g)

Allegation B: Force – PO William Butler used physical force against § 87(2)(b)

§ 87(2)(b) alleged that PO Butler and PO Carney pushed him against some scaffolding. § 87(2)(b) provided the CCRB with photos he took of himself on an unknown date following the incident. He said they depicted a bruise to his left eye, which he attributed to his face hitting the scaffolding's pole, and scabs on his left arm, which may have been from bush branches sticking out through the scaffolding. § 87(2)(b) did not seek medical attention. The photographs he provided show some minor discoloration around his eye and on his arm, but are inconclusive regarding the extent or cause of his injuries.

PO Butler admitted to grabbing § 87(2)(b)'s arm as § 87(2)(b) was trying to walk away and to leading him back to the incident location; however, he denied pushing § 87(2)(b) against any surface.

No witness statements were obtained pertaining to this allegation. PO Carney retired from the NYPD before being interviewed, PO Boyce did not see the allegation because he was inside the patrol vehicle writing a summons and § 87(2)(b) could not identify any of the civilians who observed the incident.

According to Patrol Guide section 203-11, "only that amount of force necessary to overcome resistance will be used to effect an arrest." (encl. A4-A5)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation C: Force – PO Michael Carney used physical force against § 87(2)(b)

§ 87(2)(g)

Allegation D: Abuse of Authority – PO William Butler frisked § 87(2)(b)

§ 87(2)(b) alleged that one of the officers frisked his pants pockets. PO Butler admitted that he frisked § 87(2)(b)'s pockets and waistband to check for weapons. PO Butler said he suspected § 87(2)(b) of having a weapon for three reasons: 1) PO Butler had observed § 87(2)(b) behave violently during an earlier incident, 2) § 87(2)(b) appeared agitated and uncooperative, walking away during the stop and asking the officer why he grabbed his arm and 3) § 87(2)(b) had been swinging his keys around and refused to put them away when asked. PO Butler was concerned the keys could be used as a weapon and that § 87(2)(b) may have had other weapons on him as well. Other than these reasons, PO Butler identified nothing else that caused him to suspect § 87(2)(b) had a weapon. PO Butler did not mention seeing any bulges on § 87(2)(b).

§ 87(2)(b) acknowledged that he initially refused to cooperate with the officers' instructions to put down the items he had in his hands, but he did not describe swinging his keys around. He also confirmed that he and PO Butler had interacted on a previous occasion.

For an officer to conduct a frisk, he or she "must have knowledge of some fact or circumstance that supports a reasonable suspicion that the suspect is armed or poses a threat to safety. People v. Batista 88 N.Y.2d 650 (1996) (encl. A-A3)

§ 87(2)(g)

§ 87(2)(g)

Allegation E: Abuse of Authority – PO William Butler searched § 87(2)(b)

§ 87(2)(b) alleged that PO Butler reached into his pants pockets and retrieved a razor. PO Butler denied ever going into any of § 87(2)(b)'s pockets or retrieving a razor at any point during the incident. As discussed above, there were no other witnesses, civilian or officer, who provided statements to the CCRB about this allegation.

§ 87(2)(g)

Team: 3

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date